

Kulwant Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 20 December 2019 · Writ-C No. 42568 of 2019 · Writ - C No. 42568 of 2019 · **Writ disposed; EE to hear objections and pass a speaking final order; coercive recovery stayed; s.127 if aggrieved.**

HEADNOTE

A writ seeking to quash a recovery citation for electricity dues, alleging coercive action without hearing and without following the U.P. Electricity Supply Code, 2005, was disposed of without a merits decision. The consumer was directed to appear before the Executive Engineer with objections; a speaking final order was required within four weeks; coercive action was stayed for a limited period; and a Section 127 appeal was left open if the consumer remained aggrieved. Non-appearance would revive the citation automatically.

FACTUAL SUMMARY

Kulwant Singh petitioned the Allahabad High Court for certiorari to quash a recovery citation dated 5 December 2019, by which the Executive Engineer directed deposit of Rs. 1,17,520 as electricity dues. He alleged coercive recovery without an opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the Electricity Department was heard. The Court did not decide the demand and disposed of the writ on directions.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation to speaking order and section 127 appeal

HOLDING

A writ challenging a recovery citation for electricity dues, alleging coercive action without hearing and without following the U.P. Electricity Supply Code, 2005, was disposed of without a merits quash. The consumer was directed to appear before the Executive Engineer on 9 January 2020 with objections and evidence; the Engineer was to pass a speaking final order within four weeks; coercive action was stayed for six weeks or until disposal of the objection, whichever earlier; a Section 127 appeal was left open if the consumer was aggrieved by that final order; and the citation would revive automatically if the consumer failed to appear. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing the Executive Engineer to hear objections and pass a speaking final order on the recovery citation, the Court left the consumer to a Section 127 appeal if aggrieved by that order, and did not decide the electricity dues in writ. ¶ 1

relegation-to-section-127-appeal-on-merits-limitation-not-examined The Court did not examine the merits of the Rs. 1,17,520 recovery or the petitioner's Supply Code and hearing objections; those were left to the Executive Engineer's speaking order and, thereafter, to a Section 127 appeal. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 05.12.2019 FOR RS. 1,17,520 ELECTRICITY DUES

The Court neither quashed nor upheld the citation on merits; it directed a speaking final order by the Executive Engineer and reserved a Section 127 appeal. ¶ 1

NOT DECIDED — WHETHER RECOVERY PROCEEDED WITHOUT OPPORTUNITY OF HEARING OR IN BREACH OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

The petitioner's natural-justice and Supply Code objections were left for the Executive Engineer to consider. ¶ 1

